

In T. 892/94 (OJ 2000, 1) the board held that the right to be heard of a party absent from oral proceedings as expounded in G. 4/92, could, in appropriate circumstances, be surrendered by a party. The respondents'/patentees' declaration, before the oral proceedings that they would take no further part in the proceedings could only be construed as an unequivocal decision to surrender, voluntarily, their rights according to Art. 113(1) EPC and to no longer to avail themselves of the opportunity to present their comments on any objections, facts, grounds or evidence which could be introduced into the proceedings by the appellants or the board and which could turn out to be decisive.

In T. 191/98 the board referred to G. 4/92 and considered that the respondent (patentee), when informing it of its non-appearance, should have expected that the board would decide in substance on the patent in its granted form, taking into account any piece of evidence filed by the appellant (opponent) and arguments based on that evidence, including a line of argument further developed during the oral proceedings.

2.7.3 Non-attendance at oral proceedings before the boards – Article 15(3) RPBA 2020

The introduction of Art. 11(3) RPBA 2003 (Art. 15(3) RPBA 2020) superseded the findings of G. 4/92 for the non-attendance at the oral proceedings before the boards (T. 706/00). For cases in which the applicant files amended claims in appeal proceedings after the oral proceedings have been arranged and then does not attend them, see chapter V.A.5.5.4a) "Absence of applicant (patent proprietor) from oral proceedings". The appellant can reasonably expect that during the oral proceedings the board will consider the objections and issues raised in its communication. By not attending the oral proceedings, the appellant effectively chooses not to avail itself of the opportunity to present its observations and counter-arguments orally but instead to rely on its written case (Art. 15(3) RPBA 2020; see e.g. ex parte cases J. 15/10, T. 1625/06, T. 628/07; see also T. 55/91). As quoted in T. 991/07, the explanatory notes to then Art. 11(3) RPBA (CA/133/02, dated 12 November 2002) state that Art. 15(3) RPBA 2007 (Art. 15(3) RPBA 2020) "does not contradict the principle of the right to be heard pursuant to Art. 113(1) EPC since that Article only affords the opportunity to be heard and, by absenting itself from the oral proceedings, a party gives up that opportunity."

a) Ex parte proceedings

In T. 991/07 the board decided, with reference to Art. 15(3) and 12(2) RPBA 2007 (now Art. 15(3) and 12(3) RPBA 2020), that it could base its decision on objections which would be new to the appellant, but which could not be communicated to it due to the fact that the appellant was not present at the oral proceedings, without infringing the appellant's right to be heard (Art. 113(1) EPC). The board observed that in line with established case law (cf. e.g. decisions T. 823/04 and T. 1059/04; see also T. 1704/06, T. 532/09, T. 1278/10 – all ex parte cases), the appellant who decided not to attend oral proceedings had nonetheless had the opportunity to do so and that the requirements of Art. 113 EPC were thus met. A further justification for such an approach was that a party who filed substantive amendments to its case and then deliberately absented itself from oral proceedings in order to avoid any adverse decision being reached would infringe the general principle that it is incumbent on both the EPO and users of the European patent system to act in

good faith (G 2/97). This was especially true in situations where the appellant had initially requested that oral proceedings be held.

In T 578/14 the board took the view that, in the case in hand, the duly summoned appellant, who of her own volition did not attend the oral proceedings, could not be placed in a more advantageous position than she would have been if she had attended. The appellant's voluntary absence could not therefore be a reason for the board not to raise issues it would have raised if the appellant had been present.

In T 1367/09 the board did not raise Art. 84 EPC in its communication pursuant to Art. 15(1) RPBA 2007 (Art. 15(1) RPBA 2020). When reconsidering the case in preparation for the oral proceedings, the board noted that Art. 84 EPC should also be addressed. The oral proceedings were held in the absence of the appellant. In its decision, the board stressed that a board's communication has a preliminary character and does not have to be exhaustive. In general, new grounds for refusal have to be discussed during the oral proceedings. However, if a duly summoned appellant does not attend the scheduled oral proceedings, it waives the opportunity to present its comments on new grounds which were not mentioned in the communication under Art. 15(1) RPBA 2007 (Art. 15(1) RPBA 2020) but are decisive for the decision. In view of the principle of procedural economy, the board is not obliged to delay its decision. A board's decision dealing with new grounds, on which the appellant has not presented its comments, does not contravene the right to be heard (Art. 113(1) EPC) in such a case.

In T 1000/03 the board held that the appellant had been duly summoned, and at the oral proceedings could easily have corrected the minor deficiencies in the description. To delay the decision pending their correction was uncalled for (see Art. 15(3) RPBA 2020). Under Art. 113(2) EPC, the board had to keep to the text submitted by the appellant (applicant), who by not appearing at the oral proceedings had taken the risk of the application being refused even for easily remediable deficiencies (see also the ex parte case T 1903/06).

b) Inter partes proceedings

In T 986/00 (OJ 2003, 554) the board held, with reference to Art. 113(2) EPC and Art. 11(3) RPBA 2003 (Art. 15(3) RPBA 2020), that a patent proprietor who chooses not to be represented at oral proceedings should ensure that he has filed all the amendments he wishes to be considered. All the more when, as in the case at issue, the proprietor had been expressly warned about the possible necessity of amending the claims and the description.

In T 1010/13 oral proceedings took place in the presence of appellant I only. Although appellants II, III and IV did not attend the oral proceedings, the board held that the principle of the right to be heard pursuant to Art. 113(1) EPC was observed since that article affords only the opportunity to be heard, and by absenting itself from the oral proceedings a party gives up that opportunity (see CA/133/02 dated 12 November 2002, which is the explanatory note to former Art. 11(3) RPBA 2003 – now Art. 15(3) RPBA 2020 – cited in T 1704/06); see also chapter V.A.5.5.4a) "Absence of applicant (patent proprietor) from oral proceedings".

2.8. Changes in the composition of the competent department of first instance

Generally, changes in the composition of the competent department of first instance do not, in themselves, constitute a violation of the right to be heard if they take place before oral proceedings. In principle, the right to be heard is also not violated if the composition stays the same after oral proceedings.

For further cases, also with regard to changes in the opposition division's composition prior to the oral proceedings, see chapter III.K.1.3.2 "Change in composition of opposition division during opposition proceedings".

2.8.1 Composition change before oral proceedings

In T 1090/18 the board found that, in principle, the opposition division composition change after the summons to oral proceedings and before the oral proceedings did not lead to the conclusion that the patent proprietor (appellant in the case in hand) had been denied its right to be heard if the new member had had sufficient opportunity to familiarise themselves with the case and the opportunity to hear both parties at the oral proceedings. The board saw no reason for doubting that these conditions were fulfilled with respect to the interlocutory decision under appeal. See also T 1652/08.

The same principles apply in proceedings before the examining division, according to T 2344/16.

2.8.2 Composition change during oral proceedings

In T 960/94 the composition of the opposition division had changed between the decision announced orally and the written decision. The board decided that issuing the written decision on behalf of an opposition division whose first member was not present at the oral proceedings amounted to a substantial procedural violation of both Art. 113(1) and 116 EPC, as it had been issued on behalf of a first member before whom the parties had been given no opportunity to present their comments at oral proceedings.

In T 862/98 the decision of the department of first instance was signed by an opposition division different from that before which the oral proceedings had taken place. Oral proceedings being a fundamental expression of the right to be heard (see e.g. T 209/88), any findings at oral proceedings relevant to the final decision should be made in the presence and with the involvement of those members giving the final decision. The board decided that changes in the composition of an opposition division after oral proceedings should generally be avoided, even if no final substantive decision had been given orally. Where changes were unavoidable, new oral proceedings must in general be offered to the parties (see the analogous rule in Art. 8(1).RPBA 2020). Such offers might be forgone in exceptional cases.

In T 837/01, the final decision of the opposition division had only been signed by three members of the division, whereas the copy sent to the parties bore the name of all four members, including the legally qualified examiner. Upon enquiry by the board, it turned

out that the legally qualified member had not simply forgotten to sign the decision but had not been involved in taking the decision which constituted a substantial procedural violation (see also T 990/06).

3. Text submitted or agreed by applicant (patent proprietor) – Article 113(2) EPC

3.1. General

Under Art. 113(2) EPC, the EPO may consider and decide upon the European patent application or the European patent only in the text submitted to it, or agreed, by the applicant for or proprietor of the patent. See also chapter IV.B.3.2.3 "Decisions with no text submitted or agreed by the applicant (Art. 113(2) EPC)".

When taking its decision a board of appeal (or department of first instance) has no authority to order the grant of a European patent containing claims which are different in their content or interdependency from those submitted by the applicant (T 32/82, OJ 1984, 354). Art. 113(2) EPC is a fundamental procedural principle, being part of the right to be heard, and is of such prime importance that any infringement of it, even as the result of a mistaken interpretation of a request, has, in principle, to be considered to be a substantial procedural violation (T 647/93, OJ 1995, 132; see also T 996/12, T 690/09, T 32/82 and J 19/84). In any case, such violation occurs when the examining division does not make use of the possibility of granting interlocutory revision under Art. 109 EPC after the mistake has been pointed out in the grounds of appeal (T 647/93).

According to the board in T 996/12, Art. 113(2) EPC guarantees the fundamental principle of party disposition (*ne ultra petita*; see also R 14/10).

Art. 113(2) EPC does not give any right to an applicant in the sense that the EPO is bound to consider a request for amendment put forward by the applicant. The effect of the provision is merely to forbid the EPO from considering and deciding upon any text of an application other than that submitted to it or agreed by the applicant or proprietor (G 7/93, OJ 1994, 775; see also chapter V.B.4.3.17 "Alleged violation of Article 113(2) EPC"). The board in T 1104/14 held that this had to be understood to refer only to the decision on whether to admit the (filed) request; it did not mean the boards had the power to refuse to permit the filing of a request or not to record or accept a request during oral proceedings. That would generally constitute a serious breach of the autonomy granted by Art. 113(2) EPC to the applicant or patent proprietor to determine the text of its patent ("principle of free party disposition").

In R 8/16 the Enlarged Board held that, as a matter of principle, the board was free to examine the (pending) claim requests in any order, and therefore it was also free to conduct the discussion on them in any order, without having to give reasons. It further stated that the principle of party disposition expressed in Art. 113(2) EPC did not extend so as to permit a party to dictate how and in which order a deciding body of the EPO may examine the subject-matter before it. The only obligation on the EPO was not to overlook any still pending request in the final decision. The order of examination or discussion is a

question of procedural economy, for which mainly the deciding body is responsible. A board has no particular duty to give reasons why it chose to proceed as it did.

In T 1477/15 the board stated that it is generally accepted that in appeal proceedings the principle of party disposition applies (see e.g. R 13/13, point 15 of the Reasons), meaning that parties can put forward, withhold or withdraw their requests as they see fit. In other words, if a patent proprietor withdraws or no longer agrees to a text (two auxiliary requests, in this case), this principle prevents the board of appeal from deciding on these issues.

3.2. The requirement of a text submitted by the applicant

In T 1440/12 the board held that in the case of opposition, the intention behind Art. 113(2) EPC is that the EPO may not maintain a patent according to a particular text unless the proprietor has consented unambiguously to the patent being maintained in that form. The "text submitted" is to be understood to mean a text submitted by the proprietor with the clear intention that the patent be maintained according to that text, at least as an auxiliary measure. In the case in issue, although six new requests were enclosed with the reply to the statement of grounds of appeal, the proprietor/respondent did not actually request maintenance of the patent on the basis of any of them, but merely described them as "six auxiliary requests that the proprietor may subsequently choose to rely upon". This phrase, although the submissions in question were termed "requests", made it clear that the proprietor was not at that point requesting maintenance of the patent based on them, but merely leaving open the possibility that it might choose to make such a request subsequently.

3.3. The requirement of a text agreed by the applicant

In T 73/84 (OJ 1985, 241) the board held that the European patent was to be revoked if the patent proprietor stated in opposition or appeal proceedings that he no longer approved the text in which the patent was granted (and, in the case in hand, **maintained after opposition**) and would not be submitting an amended text (see also T 2405/12, T 655/01, T 1526/06 and the cited case law, T 203/14, T 55/16, T 766/16). According to T 1244/08, such a statement by an appellant, who is the proprietor of **a patent which has been revoked by an opposition division**, clearly and unambiguously indicating that he no longer has an interest in the appeal proceedings, is equivalent to a declaration of withdrawal of the appeal, and it is not possible to retract it and continue the proceedings (see chapter IV.D.2. "Requests for revocation during opposition and opposition appeal proceedings").

In T 454/15 the proprietor lodged an appeal against the opposition division's decision to revoke its patent, but prior to the oral proceedings stated that it no longer approved of the text of the patent as granted and would not be proposing an amended text. The board stated that where a fundamental requirement for allowing the appeal of the patent proprietor against a decision of the opposition division to revoke the patent was lacking, the proceedings should be terminated by a decision ordering the dismissal of the appeal, without going into the substantive issues (see also T 163/99, T 1637/06, T 784/14, and T 2524/12). The board stressed that its order could not be the same as in T 2405/12